



Appeal Decisions

Site visit made on 12 June 2026

by **F Cullen BA(Hons) MSc DipTP MRTPI IHBC**

an Inspector appointed by the Secretary of State

Decision date: 4 September 2026

Appeal A Ref: 6007220

7 Bridlington Street, Hunmanby, Filey, North Yorkshire YO14 0JR

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for planning permission
 - The appeal is made by Mr H Fell against North Yorkshire Council.
 - The application Ref is 25/04326/FUL.
 - The development proposed is single storey rear extension.
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Appeal B Ref: 6007221

7 Bridlington Street, Hunmanby, Filey, North Yorkshire YO14 0JR

- The appeal is made under section 20 of the Planning (Listed Buildings and Conservation Areas) Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for listed building consent.
 - The appeal is made by Mr H Fell against North Yorkshire Council.
 - The application Ref is 25/04324/LB.
 - The works proposed are erection of single storey rear extension.
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Decisions

1. **Appeal A:** The appeal is dismissed and planning permission for a single storey rear extension is refused.
2. **Appeal B:** The appeal is dismissed and listed building consent for the erection of a single storey rear extension is refused.

Applications for Costs

3. Applications for costs were made by Mr H Fell against North Yorkshire Council. These applications are the subject of separate Decisions.

Preliminary Matters

4. The two appeals concern the same scheme submitted under different, complementary, legislation. I have dealt with both appeals together in my reasoning.
5. A revised version of the National Planning Policy Framework was published on 17 August 2026 (the Framework). The revisions include policy changes which are relevant to the main issue of these appeals. In the interest of fairness, the parties were given the opportunity to comment on the Framework in relation to their respective cases. In determining the appeals, I have had regard to the Framework and the comments submitted by the parties.

6. The appeals were made on the basis of the Council's non-determination of the applications for planning permission and listed building consent within the prescribed period. The Council has submitted a 'Draft Decision' and Statement of Case, which confirm that, had the applications been determined, they would have been refused on the grounds of harm in relation to design and heritage.
7. In forming the main issue, I have had regard to the putative reasons for refusal advanced by the Council, and the relevant statutory duties as set out in sections 16(2), 66(1) and 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (as amended) (the Act).
8. At the time of my site visit I was unable to access inside the property to view the room from which the proposed extension would be accessed. As an alternative, after the site visit, the appellant submitted a photo of the internal wall which would be altered by the proposal. In the interest of fairness, the Council was given an opportunity to comment. No response was received. I am satisfied that neither main party would be prejudiced in me taking the photo into account in my determination of the appeals.
9. As part of the appeals, the appellant references an application for a rear extension which was granted listed building consent by the Council in May 2000¹ (the May 2000 consent). The parties disagree as to whether the consent has been implemented. The appellant contends that it has, and could be completed subject to the submission and approval of details. Conversely, the Council advances that it has expired.
10. It is not for me as part of these appeals to resolve whether or not the May 2000 consent has been implemented. In any event, it would not be possible to reach a conclusion on this matter given the limited evidence provided. Nonetheless, the previous grant of listed building consent for a rear extension is a relevant part of the planning history of the appeal site (the site) and a material consideration in the determination of the appeals. The appellant's case in this regard is largely based around what they contend is the precedent set by the May 2000 consent. However, given their view that it is extant, I have also considered it in terms of a potential fallback position. These points are addressed under 'Other Matters' below.

Background and Main Issue

11. A previous scheme to extend the property was refused by the Council and then dismissed at appeal². The appellant submits that the proposal before me responds to the character and context of the site and addresses the reasons why the previous appeals were dismissed.
12. Similar to the previous appeals, the main issue is whether the proposed development and works would i) preserve the Grade II listed building known as Mill Farmhouse or any features of special architectural or historic interest which it possesses; and ii) preserve or enhance the character or appearance of the Hunmanby Conservation Area.

¹ Application Ref: SCA00/00232/LB. Demolition of existing external w.c. and erection of single-storey rear extension. Granted with conditions. Only demolition carried out.

² Proposal: erection of single storey rear extension and paving rear garden. Application Refs: 22/00628/HS and 22/00809/LB; and Appeal Refs: APP/H2733/W/22/3306732 and APP/H2733/Y/22/3306733.

Reasons

Special interest and significance

13. Mill Farmhouse is a Grade II listed building³ which dates from the mid-late 18th century. The two-storey former farmhouse occupies a prominent position on the east side of Bridlington Street, within the settlement of Hunmanby.
14. The appellant submits that the heritage significance of the appeal property is 'relatively low', being of 'local / regional interest with little or no national interest in its own right'. It is not my role to consider and/or make a judgement on the inclusion of the property on the National Heritage List for England. The Grade II status identifying it as being of 'special interest' in a national context, and the associated legal protection, are afforded to the building as a whole.
15. Listings are primarily for identification purposes and do not provide an exhaustive or complete description of the building's special interest. If a specific elevation or feature (external or internal) is not included in the description, it does not mean it does not have value or does not contribute to the heritage merit of the asset overall. Moreover, the list entry confirms that unless stated otherwise, the listing includes 'both the structure itself and any object or structure fixed to it (whether inside or outside) as well as any object or structure within the curtilage of the building.' In relation to the latter, the object or structure must have formed part of the land since before 1 July 1948.
16. For the avoidance of doubt, I have assessed the heritage merit of the listed building on the basis of the above, having regard to the evidence before me.
17. The parties disagree as to whether the appellant's supporting information complies with Policy HE5(1) of the Framework⁴. Notwithstanding, from the evidence presented, I have been able to determine the special interest and significance of the designated heritage assets relevant to the appeals, as well as any effects of the proposed development and works.
18. The listed building's form, design and materials result in a distinct aesthetic which positively echoes the regional vernacular. Main features include a fairly modest, two-room deep, central stairhall plan; a steep clay pantile roof; and the use of white-washed chalk and red / brown brick.
19. The front façade presents a visually pleasing, formal and balanced elevation to the highway. White-washed, coursed, squared chalk is carefully combined with red / brown brick features including a plinth, first floor band, double dentilled eaves course and quoined detailing to the gables; and the symmetrically placed openings possess red / brown brick quoined surrounds. As a consequence, this primary façade imparts quality and status within the village.
20. In contrast, the entrance side gable and rear elevation of the building are more utilitarian in their construction, detailing and appearance. Whilst also being built of chalk and red / brown brick, the arrangement of these materials is less considered and the brick elements and detailing less intricate, with the exception of the distinctive brick 'tumbling-in' on the gable. Additionally, the positioning of the

³ National Heritage List for England, List Entry Number: 1167941.

⁴ Which requires the submission of an assessment of the significance of the assets affected (including any contribution made by their setting) and of the potential effect of the proposal on their significance.

openings is more random, and the brick surrounds less elaborate. These secondary elevations are reflective of the historic agrarian context within which this former farmhouse and associated farmstead have evolved.

21. Having regard to the above, I find that the special interest and significance of the listed building to be mainly derived from its architectural and historic interests in exemplifying a mid-late 18th century former farmhouse; and its group value with nearby former outbuildings, with which it is historically associated. Important contributors in these respects which are pertinent to the appeals, are the listed building's vernacular form using locally distinct methods of construction and materials; surviving historic fabric; and status differentiation between the primary front elevation and secondary side and rear elevations of the property.
22. The site is located within the Hunmanby Conservation Area (the HCA), which encapsulates the historic core of the village. There is no formally adopted appraisal of the HCA. Nevertheless, it can reasonably be concluded that the key characteristics which contribute to its special interest and significance are, the village's historic street pattern and associated configuration of 'ribbon' development; and the variety and quality of its historic buildings, which denote its organic evolution. A common palette of materials, including chalk and brick (exposed, painted and / or rendered) and clay pantiles, as well as distinctive detailing including tumbled gables, provide coherence to the buildings and street scene, creating a distinct sense of place. Mill Farmhouse along with the associated outbuildings, is an important and integral element of the villagescape. By virtue of its historic and architectural integrity, Mill Farmhouse adds considerably to Hunmanby's heritage merit and aesthetic charm. In doing so it positively contributes to the character and appearance of the HCA as a whole and so to its significance as a designated heritage asset.

Effects of the proposed development and works

23. The proposal is for a single storey extension to the rear of the property, with access being gained from the existing dining room. It would provide ancillary accommodation, including a home office.
24. Policy HE5(2) of the Framework confirms that assessments of the potential effects of development proposals on the significance of heritage assets should identify whether they would be likely to: a. Have a positive effect; or b. Have no effect; or c. Result in harm (which includes substantial harm), the degree of which should be identified; or d. Cause the total loss of significance.
25. Following the dismissal of the previous appeals, amendments have been made to the design of the proposed extension, including a decrease in the amount of historic fabric to be removed, a reduction in its width, and the incorporation of a steep pitched roof. In addition, the revised proposal clearly takes cues from the host building in terms of materials and construction. These comprise the use of chalk, brick and clay pantiles; brick quoin detailing to openings and corners, and 'tumbling-in' on the projecting gable; and the incorporation of Yorkshire sliding sash windows. I am also mindful of the appellant's stated intention to remove the existing mortar on the rear elevation, including cement, and repoint with lime mortar, albeit the extent of this alteration is not explicitly clear in the evidence⁵.

⁵ The change is referenced as relating to the internalised part of the rear elevation; but also as relating to the rear of the dwelling. This is not clarified in the application form (description), nor annotated on the plans.

26. Nevertheless, it remains that the proposed extension would be a substantial addition, spanning just less than half of the width of the property, and with a ridge height at first floor level. Moreover, its projection into the rear yard would be considerable relative to the property's depth. It would also result in uncomfortable junctions with the rear door and a first floor window, as well as the associated concealment of a sizeable part of the façade.
27. Even though the internalised and repointed part of the rear elevation would remain exposed and would be visible to a degree through the French doors, given the nature of this change, I am not persuaded that this aspect of the proposal would have a 'positive effect' and 'better reveal' the significance of the asset. Additionally, even if I assess that the whole of the rear elevation would be repointed with lime mortar as part of the proposal, this would 'preserve' the asset and therefore have 'no effect' on its significance.
28. I note the use of traditionally constructed complementary materials and the incorporation of vernacular features. However, in this instance as proposed, I am not convinced that the detailing is appropriate. The direct transfer and application of such bold decorative features, the inspiration for which is taken mainly from the front façade, would result in the extension appearing overly designed and unduly elaborate in its form and detailing adjoined to this secondary 'more rustic' elevation. This visual discordance would be compounded by the inclusion of modern patio doors. Together, these effects would weaken the primacy of the host asset and disrupt the important status differentiation between the front and rear elevations of the building.
29. The scheme would involve the harmful loss of historic fabric from the rear elevation. This would be limited in extent and would be from an area which possesses no internal features of interest and appears to have been the subject of change in the past. Moreover, I note the appellant's stated intent to salvage this fabric and reuse it in the construction of the extension. Whilst it has not been demonstrated how feasible this approach would be in practice; it has the potential to mitigate the identified harm to a degree.
30. Taking all of the above together, the proposed extension would be unduly prominent, would not assimilate well with this secondary rear elevation and would not successfully respond to its sensitive context. It would undermine the authenticity of the host asset and weaken its value as part of a group. In all of these respects, it would not preserve its special interest and would harm its significance. The identified harmful effects would not be visible from public routes. Nonetheless, listed buildings are safeguarded for their inherent architectural and historic interest irrespective of whether public views of the building can be gained.
31. The proposal would not affect some of the key traits that contribute to the character and appearance and thus special interest and significance of the HCA. Moreover, although the identified harmful effects would be highly conspicuous and readily perceived from the private domains of adjacent properties, they would not be visible from the general public domain. These considerations moderate the extent of harm to the significance of the HCA as a whole. Nevertheless, given the key contribution that Mill Farmhouse makes to the positive characteristics of the HCA and the cherished local scene, it is reasonable to conclude that its adverse alteration due to the proposal, would also undermine the character and appearance of the HCA as a whole.

32. Conservation is an active process of managing change to heritage assets in ways that sustain, reveal, or reinforce their heritage interests. For all of the reasons set out above, I find that the proposed development and works would not preserve the Grade II listed building known as Mill Farmhouse and any features of special architectural or historic interest which it possesses; and would not preserve or enhance the character and appearance of the HCA. Consequently, the significance of these heritage assets would be harmed.

Public benefits and balance

33. In finding harm to the significance of heritage assets, Policy HE5(2c) of the Framework requires the degree of harm to be identified. In making this assessment I recognise that it is the effect on the assets' significance rather than the scale of the development which should be considered. Given the nature of the proposed change, I find that the scheme would result in a low level of harm to the significance of the listed building and a very low level of harm to the significance of the HCA. I am satisfied this assessment accurately reflects the effects on the heritage assets caused by the proposal.
34. Nevertheless, Policy HE6(1) advises that, when considering the potential effect of a development proposal on the significance of a designated heritage asset, substantial weight should be given to the asset's conservation. This is irrespective of whether any potential effect amounts to a positive effect, harm, substantial harm, or total loss of its significance. Additionally, Policy HE6(3) states that any harm to a designated heritage asset will be a matter of considerable importance and weight.
35. Following on from the above, Policy HE6(4) requires the effect on the asset and its significance to be weighed against any public benefits resulting from the proposal.
36. There would be some time-limited economic benefits generated by the implementation of the scheme and general investment into the listed building; and social benefits would accrue from improvements to the local housing stock. Additionally, by sustaining the listed building's significance, heritage benefits would arise from the removal of cement pointing from the rear elevation and repointing (in part or whole) with lime mortar. Having regard to the amount of development and works proposed, I give each of these benefits little weight.
37. Environmental benefits would result from the use of salvaged materials. Bearing in mind the extent and unknown practicality of this approach, I ascribe little weight to this benefit. In addition, the proposed extension would be well-insulated and incorporate double-glazed windows in its construction providing, as advanced by the appellant, 'improved energy efficiency to this part of the dwelling' (my emphasis). On the basis that this would enable energy efficiency measures to be employed, it is an important public benefit and carries moderate weight in favour of the proposal.
38. However, with reference to Policy CC2(2) of the Framework, there is no substantive evidence presented which demonstrates that, of itself, the proposed development and works would improve the energy efficiency of the 'existing' host building. Consequently, this asserted benefit carries little weight. Moreover, although the proposal may enable any current or future owner or occupant to work from home, the scale of any reduction in their carbon footprint and subsequent environmental public benefits are likely to be negligible, and so also carry little weight.

39. The existing building is in residential use. There is no compelling evidence before me which demonstrates that the proposal is required to maintain this use and the asset, or to maintain the positive contribution that it already makes to the local community and the area's local character and distinctiveness.
40. In all of the above respects, clear and convincing justification has not been provided for the identified harm to the significance of the designated heritage assets. In giving substantial weight to the assets' conservation and considerable importance and weight to the identified harm, on balance, the weight I attach to the public benefits which would result from the proposal, is not sufficient to outweigh the weight I attach to the harm to the assets and their significance.
41. The scheme would therefore conflict with the requirements set out in sections 16(2), 66(1) and 72(1) of the Act, and the provisions within the Framework which seek to achieve well-designed places and conserve and enhance the historic environment. It would also not comply with Policies DEC1 and DEC5 of the Scarborough Borough Local Plan, July 2017 (the Local Plan), which together and amongst other things, require proposals to apply the principles of good design, including responding positively to the local context; and to conserve and where appropriate enhance historic environments and assets including listed buildings and conservation areas.

Other Matters

42. Amendments have been made to the scheme to address the Inspector's comments on the previous appeals' proposal. Nonetheless, I have assessed the revised scheme before me on its own merits and for the reasons set out above, have found that it would harm the significance of the designated heritage assets which would not be outweighed by the public benefits generated by the proposal.
43. In coming to my conclusions I have had regard to the May 2000 consent as a material consideration. From the limited information provided⁶, the consented scheme when compared to that before me, is smaller in width and depth, and is more centrally positioned on the rear elevation. That said, there are some similarities in terms of materials and design, including the use of coursed chalk, brickwork plinth and quoins, and clay pantiles, and the incorporation of Yorkshire sliding sash windows.
44. In terms of precedent, even though the relevant statutory duties contained within the Act have not changed, there has been a significant and material change in the national and local policy context within which a proposal of this type is assessed and determined. Namely, the publication of the Framework in 2012 (last updated 17 August 2026), the publication of the Planning Practice Guidance in 2016 (last updated 14 February 2024) and the adoption of the Local Plan. Given these changes, the previous grant of listed building consent by the Council in 2000 is not, of itself, a reason to allow the appeals, and carries little weight.
45. In terms of a potential fallback position, the May 2000 consent would not create the same amount of additional accommodation as the scheme before me. On this basis, it is reasonable to conclude that there is little 'real prospect' that the May 2000 consent would be constructed if the appeals were not allowed. In any event, even if it were constructed, mainly due to its lesser dimensions, but also because of

⁶ Elevation plans but not floor plans.

its more balanced position on the elevation, I find that it would be less harmful than the appeals' proposal. I therefore attach little weight to this potential fallback position.

46. None of the other matters raised, individually or cumulatively, alter my conclusions on the main issue.

Overall Balance and Conclusions

47. Policy S3(1) of the Framework requires decisions on development proposals to apply a presumption in favour of sustainable development. Policy S4 is relevant and states, development proposals within settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework.
48. The benefits of the scheme are set out above. Collectively, these carry moderate weight in favour of the proposal.
49. Against this, I have found that the scheme would not preserve the Grade II listed building known as Mill Farmhouse and any features of special architectural or historic interest which it possesses, nor preserve or enhance the character and appearance of the HCA, and would harm their significance. As part of this, it would also fail to achieve good design and would not respond positively to its local context in terms of its scale, form and architectural detailing.
50. The Framework is clear that substantial weight should be given to a designated heritage asset's conservation, and that any harm to a designated heritage asset will be a matter of considerable importance and weight⁷. Moreover, that development proposals should be refused if, without clear justification, they do not, amongst other things, respond to their context⁸.
51. Accordingly, I find that the benefits of approving the proposal would be substantially outweighed by the identified adverse effects, when assessed against the national decision-making policies in the Framework.
52. **Appeal A:** The proposed development would conflict with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it. Therefore, for the reasons given above, Appeal A should be dismissed and planning permission refused.
53. **Appeal B:** For the reasons given above, Appeal B should be dismissed and listed building consent refused.

F Cullen

INSPECTOR

⁷ Policies HE6(1) and (3).

⁸ Policy DP3(3) and (1).